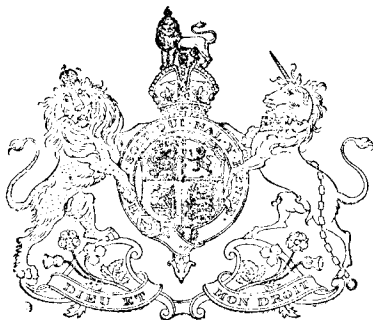


**CHAPTER viii.**

An Act to extend the powers of the North Middlesex Gas Company. A.D. 1903.
[30th June 1903.]

WHEREAS by the North Middlesex Gas Company's Act 1895 (hereinafter called "the Act of 1895") the North Middlesex Gas Company (hereinafter called "the Company") were incorporated and authorised to manufacture and supply gas in the portion of the county of Middlesex comprised in the limits of supply defined in the Act of 1895 and are supplying gas within those limits :

And whereas the existing capital of the Company consists of—

One thousand five hundred ordinary shares of ten pounds each entitled to a ten per centum per annum standard rate of dividend ;

Four thousand nine hundred and ninety-four ordinary shares of ten pounds each entitled to a seven per centum per annum standard rate of dividend ; and

Five thousand pounds five per centum preference stock :

And whereas the whole of such capital is fully paid up :

And whereas the Company have created and issued debenture stock to the amount of seventeen thousand pounds :

And whereas it is expedient that the Company should be authorised to raise additional capital in order to meet the increasing demands for a supply of gas within the before-mentioned limits :

And whereas it is expedient that the provisions hereinafter contained be made :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

A.D. 1903. — and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. **1.** This Act may be cited as the North Middlesex Gas Act 1903 and the Act of 1895 and this Act may be cited together as the North Middlesex Gas Acts 1895 and 1903.

Incorporation of general Acts. **2.** The Gasworks Clauses Act 1847 the Gasworks Clauses Act 1871 and the clauses and provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to the cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts are (so far as the same respectively are applicable for the purposes of and are not inconsistent with the provisions of this Act) incorporated with and form part of this Act.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Names of existing shares.

4. The existing shares of the Company entitled to a ten per centum per annum standard rate of dividend may be referred to for all purposes as “original ordinary shares” and all the existing or ordinary shares of the Company entitled to a seven per centum per annum standard rate of dividend and any ordinary shares created

and issued under the authority of this Act entitled to the like rate of dividend may be referred to for all purposes as “additional ordinary shares.”

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5. The Company may from time to time raise additional capital to such nominal amount as shall be sufficient to produce including the premiums if any which may be obtained on the sale thereof the sum of one hundred and twenty thousand pounds by the creation and issue of further amounts of new ordinary shares or stock or new preference shares or stock or wholly or partly by one or more of those modes respectively but the Company shall not issue any share in the additional capital by this Act authorised of less nominal value than ten pounds nor shall any such share or any stock in such capital vest in the person accepting the same unless and until the full price of such share or stock together with any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided always that not more than one half of such capital shall be issued as preference capital. Provided also that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred and twenty thousand pounds.

Additional capital.

6. Notwithstanding anything in this Act contained the Company shall when any shares or stock in the additional capital created under the powers of this Act are to be issued and before offering the same to the holders of any other shares or stock in the Company and whether the ordinary shares or ordinary stock are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock at the first offer thereof shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner. And provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any holder

New shares or stock to be offered by auction or tender.

A.D. 1903. or holders of shares or stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of shares or stock in the Company may be accepted in preference and preference may in like manner be given to any gas consumer whose bid or offer is the same in amount as any bid made by any other person not being a holder of shares or stock in the Company.

Purchase money of capital sold to be paid within three months.

7. It shall be one of the conditions of any sale of shares or stock under this Act that the full amount thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be given as to sale of shares or stock.

8. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the secretary of the committee of the London Stock Exchange and to the clerk to the Finchley Urban District Council and to the clerk to the Hendon Urban District Council at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of the Company for the supply of gas.

Shares or stock not sold by auction or by tender to be offered to holders of shares or stocks.

9. When any shares or stock in the additional capital created under the powers of this Act have been offered for sale by auction or tender and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the ordinary shares or stock and preference shares or stock of the Company in manner provided by and subject to the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and if the aggregate amount of shares or stock applied for by the said holders shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the said holders as nearly as may be in proportion to the amounts applied for by the said holders respectively Provided always that any shares or stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock in the additional capital created under the powers of this Act and the reserve put upon such shares or stock may upon such second auction or tender if the directors of the Company think fit be less than the nominal value thereof and any shares or stock not then sold shall be again offered to the holders of

ordinary shares or ordinary stock at the last-mentioned reserved price in the manner aforesaid and so from time to time until the whole of such shares or stock is sold. A.D. 1903.

10. Any sum of money which shall arise from the issue of any such shares or stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be applied to the general purposes of the Company to which capital is properly applicable and shall not be considered as part of the capital of the Company entitled to dividend. Provided that in any case where a power to raise money by borrowing or to create an insurance fund or a renewal fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up capital. Application of premium arising on issue of shares or stock.

11. Except as by this Act otherwise provided the Company shall not in any year pay out of their profits any larger dividend on the additional capital to be raised under the powers of this Act than seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital and the said rate of seven pounds per centum shall for the purpose of the Act of 1895 and this Act be deemed to be the standard rate of dividend. Profits of Company on additional capital limited.

12. The Company may from time to time subject to the provisions of this Act borrow on mortgage of the undertaking in respect of the additional capital by this Act authorised to be created and issued any sum or sums not exceeding in the whole one-third part of the amount which the Company have at the time actually raised by the issue of shares or stock in such additional capital but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premiums (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that the whole of such shares and stock together with the premiums (if any) realised on the sale thereof have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. Power to borrow.

A.D. 1903.

Appointment
of receiver.

13. Section 38 of the Act of 1895 (As to appointment of a receiver) is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act and in lieu thereof the mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver And in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than six thousand pounds in the whole.

Debenture
stock.

14. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 40 of the Act of 1895 The interest to be paid on any mortgages or debenture stock granted or created by the Company under the authority of this Act shall not exceed four per centum per annum.

Priority of
mortgages
and debenture
stock
over other
debts.

15. All money to be raised by the Company on mortgage or by the issue of debenture stock shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act :

Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Existing
mortgages
to have
priority.

16. All mortgages granted by the Company in pursuance of the Act of 1895 and subsisting at the passing of this Act shall during the continuance thereof have priority over all mortgages granted in pursuance of this Act but nothing in this section contained shall affect the priority of any debenture stock at any time created and issued by the Company.

Application
of moneys.

17. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Amending
provisions of
Act of 1895
as to insurance
and reserve
funds.

18. Section 33 (relating to insurance fund) and section 35 (relating to reserve fund) of the Act of 1895 shall from and after the passing of this Act be read and construed as if the expression

“half year” had been substituted therein for the word “year” A.D. 1903.
 wherever the last-mentioned word occurs.

19. As from the first day of January one thousand nine hundred and four section 62 of the Act of 1895 (Dividend dependent on price of gas) shall be and is hereby repealed and from and after that date the following provisions shall have effect (that is to say) :—

Dividend dependent on price of gas.

The standard price to be charged by the Company for the supply of gas shall be four shillings and threepence per thousand cubic feet :

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the standard rate of dividend as follows :—

In respect of any half year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds nominal value of ordinary paid-up capital with a standard ten per centum dividend and by one shilling and ninepence on every one hundred pounds nominal value of ordinary paid-up capital with a standard seven per centum dividend and so in proportion for any fraction of one hundred pounds of any such capital :

And in respect of any half year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by two shillings and sixpence on every one hundred pounds nominal value of ordinary paid-up capital with a standard ten per centum dividend and by one shilling and ninepence on every one hundred pounds nominal value of ordinary paid-up capital with a standard seven per centum dividend and so in proportion for any fraction of one hundred pounds of any such capital.

20. The directors of the Company may in each half year if they think fit appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding

Renewals.

A.D. 1903. — an amount equal to one half per centum on the paid-up capital for the time being of the Company to be called “the renewal fund” to provide for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes :

Such fund shall be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-tenth of the paid-up capital for the time being of the Company :

Provided that when and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend Provided also that if such fund be at any time reduced below such sum it may hereafter be made up to that sum and so from time to time as often as such reduction shall happen.

Power to
Hendon Ur-
ban District
Council to
provide a
testing-place.

21.—(1) The Hendon Urban District Council shall at their own expense and to the reasonable satisfaction of the Company before the thirtieth day of June one thousand nine hundred and four provide at the Council Offices Hendon a testing-place and shall provide and fix therein all the necessary apparatus and machinery for testing the purity illuminating power and pressure of the gas supplied by the Company and such testing-place shall be deemed to be an official testing-place in conformity with the provisions of the Gasworks Clauses Act 1871.

(2) The apparatus to be used for testing the gas and the mode of making the tests (except that the testings for illuminating power shall be made at intervals of not less than half an hour each) may if the Company desire in lieu of the apparatus referred to in the last preceding section be such as shall from time to time be prescribed by the referees for testing gas supplied within the metropolis Such further or substituted apparatus shall be from time to time provided by the Company at their own expense.

(3) Any gas examiner may test the illuminating power purity and pressure of the gas supplied by the Company at any time of the day or night.

(4) No forfeiture shall be incurred in any case with respect to which it is proved before the justices that the defect of illuminating power or excess of impurity was occasioned by unavoidable cause or accident.

22. As from the commencement of this Act section 66 of the Act of 1895 shall be read and construed for all purposes as if the words “eight-tenths of an inch” were substituted therein for “six-tenths of an inch” and the words “ten-tenths of an inch” were substituted therein for “eight-tenths of an inch.”

A.D. 1903.
Pressure of gas.

23. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company.

Power for directors to determine remuneration of secretary.

24.—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting. Provided that if the number of auditors be increased to two one of such auditors shall be a professional accountant.

Number and qualification of auditors.

(2) It shall not be necessary for any auditor appointed by the Company to hold shares in the capital of the Company.

25. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so doing or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

Anti-fluctuators for gas engines.

26.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

Power to supply gas fittings &c. for heating and other purposes.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in

Fittings not to be subject to distress.

A.D. 1903. — whose possession the same may be Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Gas consu-
mers to give
notice to
Company be-
fore remov-
ing.

27. Twenty-four hours notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

Dwelling-
houses for
officers ser-
vants &c.

28. Section 73 (Dwelling-houses for workmen) of the Act of 1895 is hereby repealed and in lieu thereof the following provision shall have effect (that is to say) The Company may on any lands belonging or leased to them erect or acquire and fit up maintain and let houses cottages and dwellings for their officers and servants and workmen.

Expenses of
Act.

29. All the costs charges and expenses of and incident and preliminary to the preparing and applying for obtaining and passing of this Act shall be paid by the Company.

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